UNIT 1

WORKSHOP ON IMPLEMENTING THE CONVENTION AT NATIONAL LEVEL: INTRODUCTION

PARTICIPANT'S TEXT

This unit covers the following topics:

- Capacity-building workshops for implementing the UNESCO Convention for the Safeguarding of the Intangible Cultural Heritage.[1]
- The use of the capacity-building materials.
- The definition of intangible cultural heritage (ICH) and safeguarding according to the Convention.
- Resources, abbreviations and terminology.

1. Frequently referred to as the 'Intangible Heritage Convention', the '2003 Convention' and, for the purpose of this unit, simply the 'Convention'.

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Published in 2016 by the United Nations Educational, Scientific and Cultural Organization, 7, place de Fontenoy, 75352 Paris 07 SP, France

© UNESCO 2016

This publication is available in Open Access under the Attribution-ShareAlike 3.0 IGO (CC-BY-SA 3.0 IGO) license (http://creativecommons.org/licenses/by-sa/3.0/igo/). By using the content of this publication, the users accept to be bound by the terms of use of the UNESCO Open Access Repository (http://www.unesco.org/open-access/terms-use-ccbysa-en).

The images of this publication do not fall under the CC-BY-SA licence and may not be used, reproduced, or commercialized without the prior permission of the copyright holders.

The designations employed and the presentation of material throughout this publication do not imply the expression of any opinion whatsoever on the part of UNESCO concerning the legal status of any country, territory, city or area or of its authorities, or concerning the delimitation of its frontiers or boundaries.

The ideas and opinions expressed in this publication are those of the authors; they are not necessarily those of UNESCO and do not commit the Organization.

1.1 A CAPACITY-BUILDING CURRICULUM

In 2003 the General Conference of the United Nations Educational, Scientific and Cultural Organization (UNESCO) adopted the Convention for the Safeguarding of the Intangible Cultural Heritage, which entered into force in 2006. Already over two-thirds of the Member States of UNESCO have now ratified this Convention.

The Intergovernmental Committee for the Safeguarding of the Intangible Cultural Heritage that oversees the implementation of the Convention requested that the UNESCO Secretariat organize worldwide trainings aimed at reinforcing capacities for the implementation of the Convention. States Parties provided generous financial support to allow the Secretariat to prepare training materials, train facilitators and fund capacity-building activities.

CAPACITY-BUILDING WORKSHOPS

The Secretariat has developed a series of capacity-building workshops that cover different themes related to the implementation of the Convention such as ratification, implementation of the Convention at the national level, community-based inventorying, nominations and development of safeguarding plans. Further themes are currently under development. The workshops themselves are customized to the needs of the participants and the countries they come from. Interactive discussions are organized around themes that are especially important for participants.

TRAINING MATERIALS

Training materials for the workshops were developed by internationally recognized experts in the field of ICH. Designed to be easily adaptable to local needs, these materials are divided into units which include Facilitator's notes, Participant's texts, PowerPoint presentations, exercises, quizzes and a wide range of case studies. The training materials frequently refer to Articles of the Convention and paragraphs of the Operational Directives (ODs). These texts should therefore also be used during the workshops. The Basic Texts of the Convention also contain Ethical Principles for Safeguarding Intangible Cultural Heritage, which can be another useful reference tool for participants.

Materials were tested by facilitators with different audiences around the world. All materials are available electronically for use by facilitators in English. Some units are also in French, Spanish, Portugeuse, Russian and Arabic.

The core curricula is far from closed. On the contrary, the strategy foresees a continuous process of development of new topics and of improvement and adaptation of the existing materials in order to reflect the feedback received from facilitators and participants and to adapt them effectively to the specific needs of each State. This updating process concerns not only content development but also the design and packaging of the training curricula to increase their educational effectiveness, attractiveness and ease of reproduction.

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

Training materials are used not only in the context of workshops. They have also been designed as sources of information to accompany the longer-term initiatives such as policy revision or institutional reforms.

1.2 ABOUT THE PARTICIPANT'S TEXT

The Participant's text is meant to serve as a reference in training workshops and can later also be used as a reference for participants to assist them in the implementation of the Convention. The Participant's text provides general information; during the workshops, more detail and background information will be provided.

ICONS

Icons are used throughout the capacity-building materials to draw attention to certain aspects of the text.

The eye icon indicates a reference to another unit or section of the capacity-building materials not contained within the document or a reference to the Basic Texts.

The paper icon indicates a reference that is not part of the Convention's capacity-building materials. This may include websites, articles and other external resources.

The exclamation mark icon indicates information that is particularly important to pay attention to and remember.

The pencil icon indicates an exercise or activity that is part of the unit. These exercises require adequate attention.

1.3 CONTENT

The Participant's text of the five-day workshop covers thirteen units. Most of them are quite practical; they contain suggestions for different stakeholders that may be involved in the implementation of the Convention and that may or should be involved in the safeguarding of ICH. The place of the 'communities concerned', that is, the people who create, enact and transmit ICH, is a recurring theme in the training materials, reflecting the focus of the Convention and the ODs.

The first three units on implementing the Convention provide a broad overview of the Convention and its ODs, what obligations States take on when ratifying the Convention and possible ways of implementing the Convention, in particular, safeguarding the ICH present in the various States Parties to the Convention

Unit 1 introduces the participants to each other, situates the workshop content in their context and provides an overview of the workshop.

Unit 2 introduces the Intangible Heritage Convention.

Unit 3 discusses the key concepts of the Convention.

Most of the subsequent units illustrate one or other action that is required or recommended for the effective implementation of the Convention and for the safeguarding

CC BY SA

of ICH in the spirit of the Convention. The topics of ethics and gender have been integrated throughout the 15 units.

Unit 4 provides an overview of what States Parties, bearers, communities, NGOs, other organizations, institutions and experts can do in the safeguarding of the ICH present in the territory of the State.

Unit 5 discusses why and how to raise awareness about ICH.

Unit 6 deals with the issue of identification and inventorying of ICH.

Unit 7 discusses why and how to involve the communities concerned in any action concerning their ICH.

Unit 8 discusses the relationship between ICH and sustainable development.

Unit 9 discusses safeguarding.

Unit 10 presents and discusses the recommendations made in the Convention and the ODs concerning the development of ICH policies and institutions.

Unit 11 deals with an overview of nominations.

Unit 12 deals with international cooperation and assistance.

Unit 13 compares the Intangible Heritage Convention and the World Heritage Convention. This unit may provide useful background reading for facilitators and for those participants with training or employment in the area of tangible heritage management.

Units 14 and **15** cover conclusions and evaluation of the workshop and do not contain a Participant's text.

1.4 INTANGIBLE CULTURAL HERITAGE

The Convention provides only a few definitions, most of them in Article 2. Both 'intangible cultural heritage' and 'safeguarding' are defined there. As these are two key concepts of the Convention, they will be introduced briefly here and presented more fully in Participant's text Unit 3.

Article 2.1 of the Convention presents the following broad and inclusive definition of ICH, to be used for the purposes of the Convention:

> The 'intangible cultural heritage' means the practices, representations, expressions, knowledge, skills – as well as the instruments, objects, artefacts and cultural spaces associated therewith – that communities, groups and, in some cases, individuals recognize as part of their cultural heritage. This intangible cultural heritage, transmitted from generation to generation, is constantly recreated by communities and groups in response to their environment, their interaction with nature and their history, and provides them with a sense of identity and continuity, thus promoting respect for cultural diversity and human creativity. For the purposes of the Convention, consideration will be given solely to such intangible cultural heritage as is compatible with existing human rights instruments, as well as with the requirements of mutual respect among communities, groups and individuals, and of sustainable development.

FIRST SENTENCE OF THE DEFINITION

The focus in the first sentence is on 'practices, representations, expressions, knowledge [and] skills', enacted, developed and transmitted by people – these are generally referred to as 'elements' of ICH. The associated 'instruments, objects, artefacts and cultural spaces' are only part of the definition of ICH in their association with ICH manifestations; by themselves, they are not referred to as ICH elements and they need not have separate tangible heritage value. This first sentence also indicates that the people concerned are the ones who are entitled to recognize what belongs and what does not belong to their cultural heritage.

SECOND SENTENCE OF THE DEFINITION

The main message in the second sentence of the definition is that ICH is living heritage, transmitted by people within communities, and that it is ever changing. ICH has important functions for the communities, groups and individuals concerned, and for the understanding and promotion of cultural diversity and human creativity.

THIRD SENTENCE OF THE DEFINITION

ICH profoundly affects communities and plays a role in relationships between them; it may also affect the environment and vice versa. Article 2.1 thus further states that under the Convention, ICH can only be taken into account when it is: (a) compatible with human rights and sustainable development; and (b) promotes 'mutual respect' between communities, groups and individuals.

For the sake of illustration, the Convention provides a non-exhaustive list of domains of ICH in Article 2.2:

(a) oral traditions and expressions, including language as a vehicle of the intangible cultural heritage;

(b) performing arts;

(c) social practices, rituals and festive events;

(d) knowledge and practices concerning nature and the universe;

(e) traditional craftsmanship.

For more information, see Participant's text Unit 3: 'Domains of ICH'

1.5 SAFEGUARDING

Article 2.3 of the Convention defines safeguarding as 'ensuring the viability of the ICH'; this is often rephrased as ensuring the continued practice and transmission of ICH while maintaining its value and function for the people concerned. Measures for safeguarding may aim to create favourable general conditions in which the ICH present in a country can thrive. Safeguarding measures may also target specific ICH elements, or groups of elements, that face threats or risks to their continued viability.

CC BY SA

The implementation of ICH safeguarding measures at different levels is a task that the international community is increasingly willing to support, as shown by the rapid ratification of the Convention (see also Article 19.2).

Since safeguarding intangible heritage means ensuring that it continues to be practised today without compromising the ability of coming generations to enjoy it in the future, it can contribute to and benefit from agendas for sustainable development. Sustainable development was defined in 1987 by the Brundtland Commission as 'development that meets the needs of the present without compromising the ability of future generations to meet their own needs.'[2]

For more information on the concept of safeguarding, see Participant's text Unit 3 and Unit 9.

1.6 RESOURCES

Workshop participants will be provided with either hard or electronic copies of the Basic Texts. Available in Arabic, Chinese, English, French, Russian and Spanish, this publication presents the text of the Convention, its Operational Directives, the Rules of Procedure of the two Organs of the Convention, Financial Regulations and a number of annexes. All the texts it contains can also be downloaded from the ICH website. The ICH website, http://www.unesco.org/culture/ich/index.php?lg=en&pg=00001, managed by the Secretariat to the Convention, is the source of many relevant documents and additional information, such as:

- The six official versions of the Convention. The Convention has been translated, officially or unofficially, into a large number of languages. Many of these translations are available at: http://www.unesco.org/culture/ich/index.php?lg=en&pg=00102
- Information on the Organs of the Convention, including detailed reports of their meetings and lists of their decisions.
- Information about meetings relating to ICH and the Convention organized or co-organized by UNESCO from 1992 onwards: http://www.unesco.org/culture/ich/index.php?lg=en&pg=00015
- Information about accredited non-governmental organizations (NGOs): http://www.unesco.org/culture/ich/index.php?lg=en&pg=331
- A kit explaining what ICH is and why it is worthwhile safeguarding it: http://www.unesco.org/culture/ich/index.php?lg=en&pg=00018
- A presentation of the elements inscribed on the Lists of the Convention and of projects or programmes included in the Register of Good Safeguarding Practices: http://www.unesco.org/culture/ich/index.php?lg=en&pg=00011
- The forms to be used for nominating elements to the Lists of the Convention (English and French only), for nominating safeguarding practices for inclusion on the Register of Good Safeguarding Practices, for requesting international assistance, for accreditation of non-governmental organizations and for periodic reporting. These can be found at: http://www.unesco.org/culture/ich/en/forms

orld Commission on Environment and Development (the Brundtland Commission). 1987. *Our Common Future*. Oxford, Oxford University Press.

United Nations Educational, Scientific and Cultural Organization · Intangible Cultural Heritage

For the work of the World Intellectual Property Organization on intellectual property and traditional cultural expressions, see http://www.wipo.int/tk/en/resources.

There is a rapidly growing body of publications on the Convention and its implementation.

See for example:

- Blake, J. 2006. *Commentary on the UNESCO 2003 Convention on the Safeguarding of the Intangible Cultural Heritage*. Leicester, Institute of Art and Law.
- Hottin, C. and Khaznadar, C. (eds). 2011. *Le patrimoine culturel immatériel, premières expériences en France*. Internationale de l'imaginaire, new series, No. 25. Paris, Maison des Cultures du Monde/Babel.
- Smith, L. and Akagawa, N. 2009. *Intangible Heritage* (Key Issues in Cultural Heritage). London/New York, Routledge.
- UNESCO. 2004. *Museum International*. No. 221/222: Intangible Heritage.
- Journals such as the International Journal of Intangible Heritage and the International Journal of Heritage Studies both publish articles dealing with ICH that are based on case studies.
- The International Information and Networking Centre for Intangible Cultural Heritage in the Asia-Pacific Region (ICHCAP) (http://www.ichcap.org/eng/index/index.php) and the Asia/Pacific Cultural Centre for UNESCO (ACCU) (http://www.accu.or.jp/ich/en/) also have a number of ICH-related reports and case studies on their websites.

CC BY SA